

25STCV00641 25STCV00641

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-21

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Case Number: 25STCV00641 Hearing Date: September 21, 2026 Dept: 512

HEARING DATE: Mon.,

September 21, 2026 JUDGE/DEPT: Mkrtchyan/512

CASE NAME: Merlos,

et al. v. Queen Anne COMP. FILED: 01-10-25

Properties, LLC

CASE

NUMBER: 25STCV00641

NOTICE: OK

PROCEEDINGS: AMENDED

PETITIONS FOR APPROVAL OF COMPROMISE OF CLAIM OR ACTION OR DISPOSITION OF
PROCEEDS OF JUDGMENT FOR MINOR

MOVING PARTY: Petitioner

Lesly Alay on behalf of minor Claimants

Emma Valentina Herrera-Alay and Scarlett Yamileth Herrera-Alay

RESP. PARTY: None

PETITION TO APPROVE COMPROMISE OF A DISPUTED CLAIM

(CCP § 372, CRC, rule 7.950.5.)

TENTATIVE RULING:

The

Amended Petitions for Approval of Compromise of Claim or Action or Disposition
of Proceeds of Judgment for Minor filed on behalf of minor Claimants Emma Valentina Herrera-Alay and Scarlett
Yamileth Herrera-Alay are GRANTED.

The

following persons are still required to attend the hearing on the compromise of
the claim:

1. Person compromising the claim on behalf
of the minor or disabled person (CRC Rule 7.952(a))

2. The minor (id.)

Moving

parties are ordered to give notice.

SERVICE:

[X] Proof of Service Timely
Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§
1013, 1013a) OK

[X] 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) OK

OPPOSITION: None filed as of September
16, 2026 [] Late [X] None

REPLY: None filed as
of September 16, 2026 [] Late [X]
None

ANALYSIS:

I.

Background

On

January 10, 2025, Plaintiffs Jonathan Merlos and Lesly Alay ("Plaintiffs") and minor Plaintiffs Emma Valentina Herrera-Alay ("E.V. Herrera-Alay") and Scarlett Yamileth Herrera-Alay ("S.Y. Herrera-Alay"), by and through their Guardian Ad Litem Alay ("minor Plaintiffs") filed the instant action against Defendant Queen Anne Properties, LLC ("Defendant") and Does 1-50, alleging causes of action for Breach of Warranty of Habitability, Breach of the Covenant of Quiet Enjoyment, Negligence, and Breach of Contract. (Compl., p. 1.)

On

January 27, 2025, Petitioner Alay was appointed Guardian Ad Litem of S.Y. Herrera-Alay. (1/27/25 Order.)

On

January 30, 2025, Petitioner Alay was appointed Guardian Ad Litem of E.V. Herrera-Alay. (1/30/25 Order.)

On

May 2, 2025, Defendant filed an Answer.

On

June 23, 2026, Petitioner filed the Petitions for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor (the "Petitions") on behalf of minor Plaintiffs. Petitioner also filed Proposed Orders.

On

July 15, 2026, the Court continued the Petitions due to defects in service and notice of hearing. (7/15/26 Order.)

On

July 16, 2026, Petitioner filed and served Notice of Ruling.

On

August 26, 2026, the Court continued the hearing on the Petitions due to defective service of the Petitions. (8/26/26 Order.)

That

same day, Petitioners filed and served Notice of Ruling. Also that same day,

Petitioner filed and served the instant Amended Petitions and accompanying proposed orders.

No

Opposition to the Amended Petitions have been filed.

II.

Procedural

Issues

While the Court acknowledges the Notice of Ruling providing for the continued hearing date on the Petitions contains the incorrect time for the hearing, the Court finds the remainder of the notice of ruling/notice of hearing on the Amended Petitions is correct. Moreover, the incorrect hearing time is 30 minutes earlier than the actual scheduled hearing time on the Amended Petitions. Thus, the Court exercises its discretion to find notice of hearing on the Amended Petitions is substantially satisfactory.

The Court finds the previous deficiencies in service have been remedied regarding the Amended Petitions. (Amended Pets., Proofs of Service.)

III.

Legal

Standard & Discussion

Court approval is required for all settlements of a minor's claim. (Prob. Code §§ 3500, 3600, et seq.; Code of Civ. Proc., § 372.) " '[W]ithout trial court approval of the proposed compromise of the ward's claim, the settlement cannot be valid. [Citation.] [¶] Nor is the settlement binding [on the minor] until it is endorsed by the trial court.' " (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1338.) A minor, like Claimant, "shall appear either by a guardian or conservator of the estate or by a guardian ad litem appointed by the court in which the action or proceeding is pending, or by a judge thereof, in each case." (Code Civ. Proc., § 372, subd. (a)(1).)

To obtain court approval of the settlement of a minor's claims, the petitioner must file a "verified petition for approval of the settlement and must disclose 'all information that has any bearing upon the reasonableness of the compromise.' " (Barnes v. Western Heritage Ins. Co. (2013) 217 Cal.App.4th 249,

256, fn. 4, citing Cal. Rules of Court, rule 7.950.)

A.

Amended

Petition of Emma Valentina Herrera-Alay

The Court

finds the Amended Petition and Proposed Order are substantially complete. The Court also finds that Petitioner provided timely and proper proof of service of the Amended Petition, notice of hearing, and proposed order. Finally, the Court finds the proposed settlement to be fair and reasonable in light of minor Claimant's damages.

Thus, the Amended

Petition is GRANTED.

B.

Amended

Petition of Scarlett Yamileth Herrera-Alay

The Court

finds the Amended Petition and Proposed Order are substantially complete. The Court also finds that Petitioner provided timely and proper proof of service of the Amended Petition, notice of hearing, and proposed order. Finally, the Court finds the proposed settlement to be fair and reasonable in light of minor Claimant's damages.

Thus, the Amended

Petition is GRANTED.

IV.

Conclusion

& Order

For

the reasons stated above, The Amended Petitions for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor filed on behalf of minor Claimants Emma

Valentina Herrera-Alay and Scarlett Yamileth Herrera-Alay are GRANTED.

The

following persons are still required to attend the hearing on the compromise of the claim:

1. Person compromising the claim on behalf of the minor or disabled person (CRC Rule 7.952(a))

2. The minor (id.)

Moving

parties are ordered to give notice.